SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 156 of 2023 (YEAR: 2022)

CORAM: D.Y. CHANDRACHUD, HIMA KOHLI

Yogesh Jain
... Appellant(s) / Petitioner(s)
Versus
Sumesh Chadha
... Respondent(s)

Acts Referred:	Negotiable Instruments Act, 1881
Sections:	Section 138 NI Act, Section 143A NI Act

JUDICIAL HEADNOTE & SUMMARY

Held that grant of interim compensation under Section 143A NI Act is discretionary and not mandatory; trial court must apply judicial mind and record reasons.

RATIO DECIDENDI

The Court held that: Held that grant of interim compensation under Section 143A NI Act is discretionary and not mandatory; trial court must apply judicial mind and record reasons. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Yogesh Jain v. Sumesh Chadha (Criminal Appeal No. 156 of 2023) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Negotiable Instruments Act, 1881, particularly Section 138 NI Act, Section 143A NI Act. Held that grant of interim compensation under Section 143A NI Act is discretionary and not mandatory; trial court must apply judicial mind and record reasons.

OPERATIVE ORDER

ORDER: Decided